



MEMORANDUM OF UNDERSTANDING (MoU)

This Memorandum of Understanding (MOU) is made on 30th June, 2022 at Lucknow, Uttar Pradesh.

BETWEEN

Governor of Uttar Pradesh (GoUP) through Shri Navneet Sehgal, Additional Chief Secretary, Micro, Small, Medium Enterprises and Export Promotion Department, Government of Uttar Pradesh (hereinafter referred to as "GoUP") of one part;

AND

Amazon Seller Services Private Limited, having its registered office at 26/1, Brigade Gateway, World Trade Centre, Dr. Rajkumar Road, Bangalore – 560 055, Karnataka and its Affiliates (hereinafter referred to as "Amazon"),;

GoUP and Amazon herein after collectively referred to as "Parties" and individually as "Party".

WHEREAS ODOP (One District One Product) Cell is a programme implementation cell set up by Directorate of Industries, Government of Uttar Pradesh, to implement One District One Product programme of the UP State Government, having its principal office at First Floor, Niryat Bhawan, 8 Cantt Road, Qaiserbagh, Lucknow – 226001, Uttar Pradesh (hereinafter referred to as "ODOP Cell").

WHEREAS Amazon operates an online marketplace www.amazon.in that enables sellers to sell their products online in India to customers throughout the country through its marketplace available on Amazon.in ("Marketplace"). Sellers on Amazon.in sell products in various product categories including but not limited to apparel, home décor, footwear, jewelry, and grocery.

And WHEREAS, the GoUP and Amazon agree on the importance of introducing e-commerce and enabling e-commerce adoption among sellers including artisans, weavers, craftsmen, traders and MSMEs selling products aligned with the ODOP vision;





NOW, THEREFORE, THIS MoU WITNESSES as below:

I. ROLES AND RESPONSIBILITIES:

- a) Amazon is desirous of supporting the ODOP cell in creating mutual shared value for merchants/artisans and MSMEs working in ODOP-specific sectors in Uttar Pradesh, with a focus to digitise sellers (including artisans, craftsmen and weavers), and increasing business opportunities and trade inclusion opportunities for these stakeholders.
- b) Amazon being involved in supporting the activities of the ODOP cell for the state of UP, shall facilitate the following:

E-Commerce

- i. Amazon aims to enable sellers including MSMEs, artisans, weavers and craftsmen selling products aligned with the ODOP vision to obtain access to consumer base at a national level by on-boarding them as sellers on the Marketplace (amazon.in) and helping them in listing and showcasing products originating from the State of Uttar Pradesh for customers across India.
- ii. Amazon will endeavour to enable a dedicated storefront on the Marketplace (amazon.in) in order to showcase the indigenous products of Uttar Pradesh aligned as part of the ODOP cell, to customers across India.
- iii. Amazon shall work with the ODOP cell to promote products aligned with the ODOP vision on the Marketplace as well as through other promotional channels to enable customer awareness and visibility of these products on the Marketplace.
- iv. Amazon shall conduct offline trainings & workshops for sellers of products aligned with the ODOP vision (including Artisans / Manufacturers / Traders / MSMEs) in districts mutually agreed upon with the ODOP cell and as facilitated by the ODOP cell. ODOP Cell shall arrange for all the necessary infrastructure at its own cost, to conduct such trainings & workshops in identified districts as referred to above. The trainings/workshops will focus on onboarding sellers (selling ODOP aligned products) on the Marketplace and assisting them in listing and cataloguing of their products on the Marketplace.
- v. GoUP shall nominate Uttar Pradesh Handicraft Development & Marketing Corporation Ltd (UHDMC), the entity functioning as its marketing arm, as an aggregator to help enable sellers such as artisans, weavers, craftsmen, traders with required support (in terms of tax registration and other requirements) for seller registration on the Marketplace.





future, outside of the scope mentioned in this MoU. Neither Party will represent itself to be an employee, representative, or agent of the other, and the Parties will have no authority to enter into any agreement on each other's behalf or otherwise bind each other to any agreement or obligation.

II. PROJECT TIMELINE

This MoU will commence from **30th June, 2022** and will continue for a period of 1 year, or until either Party terminates this MOU by giving prior notice of 30 days to other Party as provided in Article VI below.

III. OPERATIONS AND CO-ORDINATION

- a) Each Party will use information which is made available by the other Party under this MOU solely for achieving the purpose of this MOU. However, if such purpose involves disclosing such information to third party or publishing such information in any form, then prior written consent of the other Party should be obtained.
- b) Each Party will bear its own costs in carrying out the purposes stated herein. Any sharing of cost for any special events or purposes may be only as mentioned in this MOU or as mutually agreed upon in writing between the parties.
- c) GoUP through its department of MSME & Export Promotion along with Amazon shall mutually acknowledge the contribution of each other, wherever possible, on their website and media platforms including print, TV/Radio and digital media.
- d) Any amendment in this MoU will be made in writing by mutual consent of the Parties.
- e) Both Parties shall strive to conduct quarterly/half yearly meetings to review the success of as the activities envisaged under this MOU.
- f) **Public Announcements**. The form, content and timing of any press release or disclosure regarding the MoU or its contents / purpose will be made jointly by the Parties upon signing of this MoU, in such manner as is agreeable to both the Parties.

IV. FORCE MAJEURE

- a) For the purpose of this MoU "force Majeure" means an event which is beyond the reasonable control of a Party, either GoUP through its department of MSME & Export Promotion or Amazon and which makes a party's performance regarding its obligations hereunder impossible or so impracticable as reasonably to be considered impossible in the circumstances and include, but is not limited to war, riots, civil disorder, earthquakes, fire, explosions, storm, flood, and other adverse weather conditions, strikes, lock-outs, or other similar actions, political uncertainties, change





- vi. Amazon will enable participation in the Karigar program (https://www.amazon.in/l/16676064031?ref=surl_karigar) for eligible sellers as per the terms of the Karigar program and also provide them with specific benefits as available to sellers under the Karigar program such as promotional offers, fee benefits, support on onboarding, listing, cataloguing and other activities in accordance with the terms of the Karigar program available at <https://sell.amazon.in/grow-your-business/amazon-karigar>
- vii. Amazon shall make reasonable efforts to invite ODOP Cell representatives and sellers (including Artisans / Manufacturers / Traders / MSMEs) selling products aligned with the ODOP vision to seller connect events and discussions organised by the Marketplace.
- viii. Amazon shall enable sellers to provide a brief about the ODOP Programme with ODOP logo as part of the product description on the Marketplace so that a customer browsing for the product on the Marketplace can obtain more information about the ODOP program as well as the origin of the product being from Uttar Pradesh.

Other Responsibilities

- ix. Amazon shall, on a best efforts basis, and in accordance with Article III (f), showcase details of the ODOP program and success stories of sellers selling ODOP-aligned products through its various communication and marketing channels such as social media, print and other digital communication channels, as appropriate and in accordance with Amazon's policies and applicable law.

c) GoUP shall assist Amazon

- i. ODOP Cell through District Industries & Enterprise Promotion Centre (DIEPC) offices shall invite ODOP product aligned sellers (including artisans, weavers, craftsmen, traders and MSMEs) to the offline trainings and workshops to be organised by Amazon as provided under this MOU. DIEPC office shall provide, at its own cost, a venue/location and arrange for basic infrastructure for conducting such trainings and workshops. The UP Government will also provide GI certification support to eligible sellers (including artisans and craftsmen), as required, in accordance with applicable law.

- d) This MOU shall be considered to be non-binding between the Parties and does not include any monetary consideration between the Parties and is not intended to provide any basis for investment or partnership decisions at the present or in the





- in priorities in the National and State missions, which is not within the power of the Party invoking "force majeure" to prevent any other action by the other Party.
- b) If any Party finds itself incapable to perform its duty due to Force Majeure, it will give notice to other Party that Force Majeure event has arisen.
 - c) The failure of any Party, either GoUP through its department of MSME & Export Promotion or Amazon to fulfil any of its obligations is hereunder shall not be considered to be the breach of or default under this MoU in so far as such inability arises from an event of Force Majeure provided that the Party affected by such event should take all reasonable precautions and due care for reasonably carrying out the terms and condition of this MoU.
 - d) In the event of a Force Majeure, GoUP, through its department of MSME & Export Promotion and Amazon shall consult each other with a view to agreeing on appropriate measures to be taken under the circumstances.

V. INTELLECTUAL PROPERTY

Nothing contained in this MoU shall be construed as granting or conferring, whether by sale, license or otherwise, to a Party (or any of its representatives) any right, title or interest in or to Intellectual Property Rights of the other Party or its affiliates, related parties or licensors. For the purpose of this MoU, "Intellectual Property Rights" shall mean all rights in inventions, patents, trademarks, service marks, trade names, copyrights, data rights, database rights, design rights, domain names, trade secrets, know-how and other intellectual property rights (whether registered or unregistered) and all applications for any of them, anywhere in the world.

Either Party ("User Party") may use specific trademarks or logo of the other Party identified and agreed upon by the other Party only for the purpose of discharging its obligations under this MOU, subject to the terms of the trademark usage guidelines of such other Party communicated to the User Party in writing. Neither Party shall acquire any rights of ownership to any copyrights, patents, trade secrets, trademarks or other intellectual property of the other Party. On termination of this MoU, each Party shall cease using the Trademarks of the other Party.

VI. TERMINATION This MoU can be terminated by either side with a written notice 30 days in advance of such intended termination. The termination/expiration of this MOU shall be without prejudice to any rights or obligations of the Parties that may have accrued prior to the termination.





VII. DISPUTE RESOLUTION

Any dispute between GoUP through its department of MSME & Export Promotion & ODOP Cell and Amazon on any matter that has relevance to the smooth and effective implementation of the MoU shall be settled through mutual discussion.

IN WITNESS WHEREOF the Parties hereto have signed this MoU on the day and year first above written.

For and on behalf of Governor of
Uttar Pradesh
Shri Navneet Sehgal, IAS
Additional Chief Secretary (ACS).,
MSME & Export Promotion,
Uttar Pradesh.

For and on behalf of Amazon

Shri Udai Mehta
Head Public Policy (Ecommerce)
Amazon Seller Services Private Limited
Bangalore